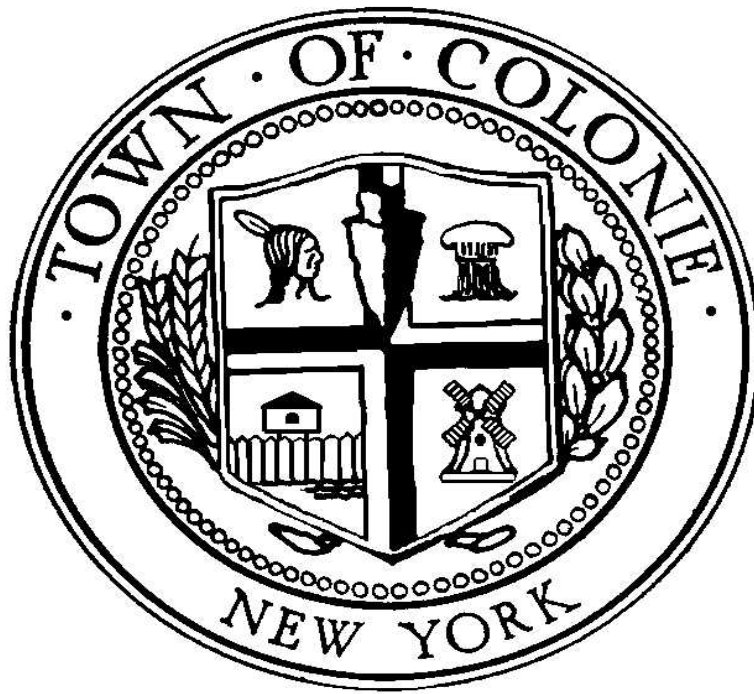




TOWN OF COLONIE

PROCUREMENT POLICIES
AND
PROCEDURES

Effective as of January 1, 2025

Town of Colonie

Purchasing Policy and Procedures

Mission Statement

The Town of Colonie General Services Department dedicates itself to the procurement of the right goods and services at the right price for the various Town departments in a timely manner assuring the prudent and economical use of public monies. The Town will facilitate the acquisition of goods and services at the lowest possible cost and at the same time guard against favoritism, extravagance and fraud.

Introduction

It is, therefore, essential that the purchasing policies and procedures of the Town of Colonie be clearly established and understood by all concerned.

The Purchasing Manual has been prepared as a statement of the policy upon which our purchasing practices and procedures are based.

The Town declares its intention to purchase competitively without prejudice and to seek maximum operational value for every dollar expended.

Purchasing Policy

- ❖ The General Services Director is responsible for reviewing and administering the purchasing program of Town of Colonie.
- ❖ Members of the Purchasing Department shall maintain effective and professional public, vendor and customer relationships.
- ❖ To maintain a high level of quality service to our customers, we encourage our staff to participate in the numerous educational opportunities offered in the purchasing field; and to keep abreast of current developments in market

conditions, pricing, new products and New York State laws as they pertain to the purchase of goods and services for the Town.

- ❖ The Purchasing policy herein shall be administered in accordance with all ethical rules called for by the Town of Colonie and the National Institute of Governmental Purchasing Code of Ethics.
- ❖ The purchasing procedures employed will comply with all applicable laws and regulations of New York State and shall be subject to the approval of the Town Board.
- ❖ Each procurement request will be examined by a member of the Town of Colonie Purchasing Department and processed according to the guidelines set forth under the appropriate section of the attached Purchasing Procedures.
- ❖ The Town of Colonie Purchasing Department will maintain adequate documentation of all action taken in connection with each method of procurement. Such documentation shall include but not be limited to any and all pertinent Board resolutions, memoranda, written quotes, contracts and any other appropriate form of documentation.
- ❖ If the General Services Director finds a supplier to be an irresponsible bidder, bid notices shall not be sent to that vendor, however any vendor will be provided with the bid package if requested. Irresponsibility is determined by a vendor failing to adhere to the terms of a contract, having repeatedly made slow or unsatisfactory delivery of supplies or services or having been found by a court of competent jurisdiction to have engaged in unlawful employment or business practices within the previous twelve (12) months.
- ❖ When soliciting bids, a “General Instructions to Bidders” will be included with all specifications provided to suppliers. These general conditions will be incorporated into contracts awarded for the purchase of materials, equipment and services.
- ❖ Purchases shall be made under Town contract pursuant to all required Laws, through available state contracts (OGS), or Sub d 3 of the New York State General Municipal Law (GML)103 and 104b which allows purchases of materials, equipment or supplies, or to contract for services, other than services subject to article nine of the labor law, through any publicly bid and

awarded contract in compliance with NYS GML law, whenever such purchases are deemed by the General Services Director to be in the best interest of the Town.

- ❖ Supplies used by various Town departments should be uniform whenever consistent with operational goals in the interest of efficiency and economy.
- ❖ No official or employee will be interested financially in contracts entered into by the municipality (as defined in Section 800 of NYS General Municipal Law). This also precludes acceptance of gratuities, financial or otherwise, as stated in the Town of Colonie Code of Ethics.
- ❖ The Town of Colonie will not be deemed responsible for any commitment made at the departmental level circumventing these procedures. If Town procedures are circumvented, disciplinary action may be taken.
- ❖ Salespersons are encouraged to visit the Purchasing Department prior to or in conjunction with initial, individual department contact.
- ❖ The policies and procedures set forth in this manual shall be annually reviewed by the Town Board.
- ❖ The unintentional failure to fully comply with the provisions of NYS General Municipal Law Sections 103 and 104-b shall not be grounds to void any action taken or give rise to cause of action against the Town of Colonie, the Purchasing Department, or any officer or employee thereof.

Purchasing Policy and Procedures

Employees Responsible for Purchasing for the Town by Name and Title

Per General Municipal Law Section 104-b (2) (f) the Town is required to include in the Policy and Procedures Manual the list of individuals by name and title that are responsible for purchasing for the Town.

Name and Title
Daniel Belles, Deputy Police Chief
Carrie Blanchard, Specialist II
Andris BlumBergs, Acting Planning and Economic Development Director
Thomas Breslin, Executive Assistant to Supervisor
Kathy Cook, Administrative Aide
Susan Cooney, Administrative Aide
E. Tucker Cox, Jr., P.E., Sewer District Superintendent
Peter G. Crummey, Esq., Town Supervisor
Kimberly Cuva, Receiver of Taxes and Assessments
Pamela Daniels, Deputy Receiver of Taxes
Tom DelTorto, Senior Account Clerk Typist
Mary Falace-Mayr, Clerk of the Court
Frederick J. Field, Sr., Deputy Town Supervisor
Christian Ford, Senior Appraiser
Kevin Franklin, Town Historian
Lynn Gallant, Terminated Service
Julie Gansle, Town Clerk
James J. Gerace, Police Chief
Brenda Gorman, Purchasing Assistant
Sandy Guerro, Benefits Coordinator
Amy Hodson, Administrative Aide
Diane Hoeffner, Confidential Secretary to Town Attorney
Christine Horton, Administrative Aide
Mary Ellen Ives, Confidential Administrative Aide to the Town Supervisor
William Jenkins, Purchasing and General Services Director
Erin Kelly, Emergency Medical Services Deputy Chief
P. Christopher Kelsey, Town Comptroller (acting)
Jennifer Kennedy, Community Development Manager
Michele Matuszek, Administrative Aide
Matthew McGarry, Commissioner of Public Works

Ronald Monfils, Town Assessor
Rosemary Newton, Human Resources Director
Tori Normandin, Administrative Aide
Victor Oberting III, Personnel Officer
Jimmy Onibokun, Network Administrator
E. Guy Roemer, Town Attorney
Thomas Romano, Public Works Operations Supervisor
Angelina Searles, Senior Resources Director
Daniel E. Seaver, P.E., Water District Superintendent
Tami Sherry, Pruy House Administrator
William Shipley, Vehicle Maintenance Supervisor
Paul Sugrue, Emergency Medical Services Chief
Daniel Sullivan, Recreation Maintenance Supervisor
Samantha Sutton, Administrative Aide
Paige Trance, Senior Clerk to Town Justice
Lisa Travis, Director of Management Information Services
Michele Turcotte, Deputy Town Clerk
Elissa Valente, Library Director
Chretien Voerg, Building Department Director

Quotation and Bid Requirements for Purchases or Leases over \$1,000

POLICY:

It is Town policy to ensure fair and consistent consideration of potential vendors offering services to the Town, and to meet State requirements for competitive bidding for goods and services required by the Town. Minimum requirements for Quotes and Bids are as follows:

Purchase and/or

Total Lease Amounts with

a Purchase Option

(Excluding Public Works

Contracts)

Quote and Bid Requirements

\$0.01 - \$3,000

Department does price check.

\$3,000.01-\$9,000.00

Three verbal quotes obtained and documented by the department.

\$9,000.01-\$14,500.00	Three written quotes obtained by the department after it provides a written scope of work and/or written specifications to the vendors/contractors.
\$14,500.01-\$20,000.00	Written quotes obtained by Purchasing utilizing a written specification developed by the department; Purchasing's effort to obtain quotes shall include utilization of the Town's internet bid distribution service.
Over \$20,000.00	Competitive public bid required.

Part of Purchasing's review is to be sure the Town does not exceed the aggregate bid limit.

The limits above may be adjusted based on the technical nature and history of the quote following a review by Purchasing.

True Leases:

True leases are defined as leases without the option to purchase. As True Leases are exempt from the Competitive bid requirement, three written quotes will be required, unless the proposed lease is as the result of a National Cooperative Contract or other contract that has already been competitively bid, to insure the Town obtains the best value for the lease dollars spent. The total annual cost of the lease will be used to evaluate the quotes received in awarding the lease. For the purposes of this provision, leases should be closed-end, with agreed upon residual values and mandatory turn-in at end of lease. Lease documentation should include negotiated price, residual value and term and payment amounts.

**Public Works Contracts
(Material and Labor)****Quote and Bid Requirements**

\$0.01 - \$6,000.00	Department Does price check.
\$6000.01 - \$12,000.00	Three verbal quotes obtained and documented by the department.
\$12,001.00 - \$24,000.00	Three written quotes obtained by the department after it provides a written scope of work and/or written specifications to the vendors/contractors.
\$24,000.01 - \$35,000.00	Written quotes obtained by Purchasing utilizing a written scope of work and/or specification developed by the department; Purchasing's effort to obtain quotes shall include utilization of the Town's internet bid distribution service.
Over \$ 35,000.00	Competitive public bid required.

For all Public Works Article 8 project and Article 9 project over \$1,500, a formal General Contracting Agreement is required. Also, a Department of Labor PRC regarding prevailing wage will be obtained and provided to the winning vendor by Purchasing.

Aggregate Amounts – In determining if an item for purchase meets the bid requirements, the Town shall consider the reasonable expected aggregate amount of all purchases of the same commodities, services or technology to be made within the twelve-month period commencing on the date of the

purchase. Purchases of commodities, services, or technology shall not be artificially divided for the purpose of avoiding the requirement to competitively bid the item required.

In each case the requesting department should make every attempt to obtain required quotes as defined above. If after good faith effort to obtain the required quantity of quotes, the requesting department is unsuccessful, the requesting department should document the actions taken and may submit the requisition with the lower quantity of quotes.

After obtaining quotes and approvals as defined in the purchasing procedures, the purchase should be awarded to the lowest quote unless there is just cause for awarding the quote to an alternate vendor. If a *quote* is awarded to a vendor other than a low quote the requesting department must submit documentation to Purchasing explaining why the award should be given to an alternate vendor. This documentation must accompany the requisition and all steps in the subsequent approval process.

If a *bid* is awarded to vendor other than a low bidder the requesting department must submit documentation through board resolution explaining why the award should be given to an alternate vendor. This documentation must accompany the requisition and all steps in the subsequent approval process.

Best Value

The Town Board seeks to exercise the local option set forth in § 103, Subdivision 1, of the New York State General Municipal Law, as amended by Chapter 608 of the Laws of 2011 and Chapter 2 of the Laws of 2012, which amendment authorizes the Town to award purchase contracts and contracts for services subject to competitive bidding under General Municipal Law § 103 on the basis of either lowest responsible bidder or “best value” as defined in § 163 of the New York State Finance Law. The “best value” option may be used if it is more cost efficient over time to award the good or service to other than the lowest responsible bidder if factors such as lower cost of maintenance, durability, higher quality and longer product life are taken into consideration.

The Town Board may award purchase contracts and service contracts that have been procured pursuant to competitive bidding under General Municipal Law § 103 by either lowest responsible bidder or best value.

The provisions of this chapter apply to Town Purchase contracts involving an expenditure of more than \$20,000.00 and Town contracts for services involving an expenditure of more than \$35,000.00 but exclude purchase contracts necessary for the completion of a public works contract pursuant to Article 8 of the State Labor Law and excluding any other contract that may in the future be excluded under state law from the best value option. If the dollar thresholds of General Municipal Law § 103 are increased or decreased in the future by the State Legislature, the dollar thresholds set forth herein shall be deemed simultaneously amended to match the new General Municipal Law thresholds.

Goods and services procured and awarded on the basis of best value are those that the Town Board determines will be of the highest quality while being the most cost efficient. The determination of quality and cost efficiency shall be based on objectively quantified and clearly described and documented criteria, which may include, but shall not be limited to, any or all of the following: cost of maintenance; proximity to the end user if distance or response time is a significant term; durability; availability of replacement parts or maintenance contractors; and longer product life; product performance criteria; and quality of craftsmanship.

Whenever any contract is awarded on the basis of best value instead of lowest responsible bidder, the basis for determining best value shall be thoroughly and accurately documented.

PROCEDURES

Purchase or Lease from \$3,000.01 to and including \$9,000.00 or Public Works Contracts from \$6,000.01 to \$12,000.00 – Documented Quote Procedures

1. The Department Head confirms the availability of budgeted funds for the item and/or service and the need

2. If budgeted funds are available and item and/or service is within the spending ranges and not covered under an existing Town Contract, the Department Head checks for State or National Cooperative Contract.
3. If a State or National Cooperative Contract does not exist the Department Head or designated employee in coordination with Purchasing, investigates three sources for the item and/or service.
4. Department in coordination with Purchasing, must document the three verbal quotes for the item.
5. Quote documentation must include the vendor name, phone number, contact name, the item and/or service, the amounts, the date of the quotes, and the person who obtained the quote.
6. Documented quotes should be signed by the person obtaining the quotes. When quote or bid requirements are fulfilled, the Department Head then selects the vendor based upon lowest price of the three quotes.
7. The documented quotes must be submitted to Purchasing along with a hard copy of the Standard Purchase Requisition.

Purchases or Leases from \$9,000.01 to and including \$14,500.00 or Public Works Contracts \$12,000.01 to \$24,000.00 – Written Quote Procedures obtained by Department

1. The Department Head confirms the availability of budgeted funds for the item and/or service and the need
2. If budgeted funds are available and item and/or service is within the spending ranges and not covered under an existing Town Contract, the Department Head checks for State or National Cooperative Contract.
3. If a State or National Cooperative Contract does not exist the Department Head or designated employee prepares a specification and/or scope of work for the item of services required.
4. Department provides specification and/or scope of work to multiple vendors to obtain at least three written quotes for the item or service.
5. Quote documentation must be on vendor's letterhead and include the vendor's name, phone number, contact name, the item and/or service, the amounts, the date of the quotes, and the person who obtained the quote.

6. When quote or bid requirements are fulfilled, the Department Head then selects the vendor based upon lowest price of the three quotes.
7. The documented quotes must be submitted to Purchasing along with a hard copy of the Standard Purchase Requisition.

Purchases or Leases from \$14,500.01 to \$20,000.00 or Public Works Contracts \$24,000.01 to \$35,000 – Written Quote Procedures obtained by Purchasing

1. The requisitioning Department Head e-mails Purchasing to request quotes for the purchase or lease of specific goods or services within the value ranges listed above. In the e-mail, the Department Head defines the scope of work and/or specifications for the item and/or service and suggests vendors from whom quotes should be solicited.
2. Purchasing documents the request for quotation from the information supplied by the Department Head. If additional information is required, Purchasing requests that the requisitioning Department Head amend the scope of work and/or specification as necessary.
3. Purchasing solicits quotes from the vendors suggested by the department. Purchasing also utilizes the Town's internet bid distribution service to solicit quotes.
4. Purchasing receives responses to the quotation request, tabulates the combined results, and forwards copies of vendor responses, including proposals to the Department Head.
5. The Department Head reviews the vendor responses and selects the vendor from whom to acquire the goods and/or services.
6. The Department Head then notifies Purchasing of the chosen vendor in writing. Purchasing creates and mails an award letter to the chosen vendor.
7. The Department Head then creates a standard purchase requisition, submitting the quotation responses with the Purchase Requisition.
8. For Public Works Contracts, a formal Town of Colonie General Contracting Agreement is required, preceding the Purchase Order.
 - a. The requesting Department Head completes a Town Board Agenda Request for the Town Board to approve the General Contracting Agreement.

- b. Following Town Board Approval, the Town Attorney creates the document with input from the Department Head. Once approved by all parties, the Agreement is sent to the vendor for signature.

Purchasing and Leases above \$20,000.00 and/or Public Works Contracts above \$35,000.00 – Formal Public Bid Procedures

1. For new purchases above \$20,000.00 and/or Public Works Contracts above \$35,000.00, the Department Head creates a “Town Board Agenda” form and a document defining the specifications for the purchase and rationale.
2. The Department Head then forwards both documents to the required approvers. Approvers include DPW/Engr. or MIS depending on the nature of the purchase and all of the following: Comptroller, Director of Purchasing and General Services, and Town Attorney.
3. The Town Attorney submits the signed “Town Board Agenda” form to the Town Board and monitors the response of the Town Board.
4. The Town Attorney notifies Purchasing and the Department Head in writing of the Town Board’s response.
5. If the Town Board approves the Purchase, Purchasing, working with the requesting department will prepare the bid document and legal notice.
6. Purchasing coordinates the submission of the legal notice with local papers.
7. Purchasing also distributes the bid document to vendors by email if possible and posts the bid document on the current electronic bid distribution service in use at the time.
8. For bid produced and administered by outside engineering or architect firms, Purchasing shall have the opportunity to review and offer changes to all bid documents produced on behalf of the Town of Colonie. Once approved Purchasing shall post the legal notice for this bid on the current electronic bid distribution service in use at the time.
9. Upon receipt of Bid responses, the Purchasing Agent tabulates responses and forwards copies of the responses and tabulation results to the requesting Department Head.

10. The Department Head reviews bid responses and selects the proposed vendor to award the purchase.
11. The Department Head then fills out a “Town Board Agenda” form to request formal authorization for the specific purchase. The “Request for Item to be placed on Town Board Agenda” form along with bid responses is routed to the same approvers as the preliminary form used to authorize the bidding process.
12. The Town Attorney submits the signed “Town Board Agenda” form to the Town Board and monitors the response of the Town Board.
13. The Town Attorney notifies Purchasing and the Department Head in writing of the Town Board’s response.
14. If the Town Board approves the purchase, the Purchasing creates and mails an Award Letter, notifying the vendor of the approval for the Purchase.
15. If the purchase is approved, the Department Head creates a standard purchase requisition defining the terms of the purchase and specific items and services.
16. For Public Works Contracts the Town Attorney will prepare a General Contracting Agreement or contract for the work which they will provide to the awarded vendor. This step shall be completed prior to the department issuing the purchase requisition.

Procurement of Professional Services and the Issuance of Requests for Proposals

POLICY:

The procurement of a Professional Service is an exception to the Competitive Bid provision of the New York State General Municipal Law. However, as the use of professional services involves the expenditure of public funds, the Town will endeavor, where possible, to seek competition for those professional services. The use of a Request for Proposal is the preferred method to seek competition for these professional services. While not every professional service agreement will be entered into as the result of an RFP, the determination of when an RFP is required shall be made as follows:

1. The General Services Director in conjunction with the Town Attorney's Office will determine if a service is classified as a Professional Services and eligible for the exemption under General Municipal Law.
2. If the service is determined to be Professional, the Department Head, the department Attorney liaison, and the General Services Director will determine if an RFP shall be required to enter into this agreement.
3. If the determination is made that seeking competition is the best interest of the Town, the Town will determine if a department issued RFP or a Purchasing Department issued RFP is the best course of action of this professional Services.

For the purposes of this policy, the Town will reference two types of request for proposals: Department Issued and Purchasing Department Issued. Both will service the same purpose:

1. The Town can review up to date services and technologies available in the market place.
2. Several different approaches to accomplish the request can be evaluated.
3. Service Providers must compete for the Town's Business. This may lead to better service and lower cost to the Town.

Department Issues RFP – A request for proposal issued by the requiring department. The document shall provide the scope of services required along with any special or technical needs. The document is issued and received by the Department. Town Board approval of the resulting contract will be required. A copy of the department issued RFP, tabulation of the responses, and a justification for award shall be part of the request for Town Board approval.

Purchasing Department Issued RFP – A formal request for proposals issued by the Purchasing Department. This RFP shall be issued as follows:

1. Purchasing will provide a basic format for the Request for Proposal document to the initiating department. The department will be required to supply the specifications for the service requested in the RFP. If the specifications are rigorous and technical in nature, the Town may subcontract the RFP development to a third-party firm that specializes in preparing such documentation.
2. The final draft of the RFP document shall be approved by the Town Attorney and the General Services Director prior to distribution.
3. Distribution of the RFP shall be handled in the same manner as a competitive bid, with the Purchasing Department advertising the RFP, distributing the RFP packages, receiving the responses, tabulating the companies that provide a proposal, and awarding the RFP.
4. The initiating department shall be responsible for the review of the proposals and the recommendation of an award.
5. The Town Board shall approve the award of the RFP and any resulting contract.

A Request for Proposal (RFP) is a descriptive document that explains in detail the requirements and terms associated with the specific services request by the Town for service providers. All request for proposal documents will include the following information:

- Statement or Scope of work requested.
- Any requirement unique to the request.
- Any special condition unique to the request.
- A method of award.

The use of the RFP process may be combined with the competitive bid or quote process if the total transaction involves a hybrid of professional services and other services or professional services and the acquisition of goods. If the primary or predominant part of the transaction is the professional service, the use of the competitive bid or quote process may not be required. Purchasing will make the final determination in conjunction with the Town Attorney's office as to the need for an additional process.

PROCEDURE:

<i>Action Steps:</i>
1. Recognize the need for a budgeted professional service that is not under Town Contract. 2. Contacts the General Service Director to review the need and confirm the service is an exempt professional service. 3. Meet with the General Services Director and Town Attorney's Office to determine if seeking competition is in the best interest of the town. 4. If Department Issued RFP is authorized, issue the RFP request and provide results to General Services to review. Complete Town Board Agenda Request form for Town Board Approval. 5. If a Purchasing Issued RFP is authorized, follow the remaining steps. 6. Request Town Board Authorization to advertise for the Request for Proposal. (if required) 7. Provide specifications for service requested. 8. Review responses and recommend an award. 9. Request Town Board Authorization to award the RFP.
1. Purchasing Issued RFP's are handled in a similar manner as an open competitive bid: Advertised in the Official Newspaper, Opened at a specific time and place, Tabulation of proposers name only, and awarded by the Town Board.
1. The Town Attorney will provide guidance to the Department Head related to the RFP process and the end results. 2. Whether subcontracted or completed by the Department, the Town Attorney will review the RFP document to ensure appropriate wording to meet Town legal requirements and appropriate risk management for the Town. 3. A contractual agreement must be created and signed by both the Town and the Service Provider. This agreement confirms the terms and conditions of the service. 4. The agreement may be initiated by the Department Head or the service provider, then forwarded to the Town Attorney for review.

CREATING AND RECEIPTING AGAINST AN OPEN PURCHASE ORDER

POLICY:

Open purchase orders are intended for repetitive low dollar purchases. They are intended to be used for vendors with whom the Town has accounts. They are not intended to reimburse Town Employees who have acquired and paid for goods and services using their personal credit cards or cash. See Time and Expense Policies and Procedures for this type of reimbursement. To qualify for an Open Purchase Order, purchases must be low dollars per unit and in total. Each requisition and invoice is not to exceed \$200 and larger dollar purchases may not be divided into \$200 increments to fall below the \$200 limit. Department Heads have the authority to acquire miscellaneous items and services, but all appropriations must be budgeted, and if not must have prior approval from the Comptroller regardless of dollar limitations.

Procedures

1. A Town Employee identifies the need for miscellaneous items or service and notifies Department Head.
2. The Department Head confirms the availability of budgeted funds for the item and/or service and the need. If budgeted funds are available and item and/or service is repetitively purchased and under \$200, the Department Head authorizes designated employee to obtain the item and/or service from an agreed upon, pre-approved vendor with which the Town has an account. In anticipation of purchases with these approved vendors, the Department Head or designated Department Employee will create an Open Purchase Requisition for the vendor, with a single line item for \$1.00. If the Vendor ID is not on file, the department is to contact Purchasing. A general description is written in the first line of the requisition, with \$1.00 for the unit price, 1 for the qty, and \$1.00 for the line amount. The Appropriation-Fund code is written in the "G/L Account" field.
3. Obtains authorization to obtain the item and/or service from the Department Head.
4. Obtains the item and/or service from the pre-authorized vendor and a detailed invoice defining the specific item and/or service performed. The receiving employee is required to show official Town identification card to the pre-authorized vendor. The receiving employee should verify the accuracy of the invoice and resolve any discrepancies prior submitting for payment, then forward the invoice to the Department Head.
5. The Department Head or designated employee within the department receives invoices from the Town Employee and updates the previously created Open Purchase Requisition to cover the invoices accumulated from the vendor for each two-week time period (or shorter if no additional invoices are anticipated from the vendor during the period). The requisition is then updated with the invoice information. Replacing the single line entered earlier, each invoice becomes a line item on the requisition. The invoice number is written in the description for items and services covered by the invoice is written in the "Item Description" line. When the requisition is complete and checked for accuracy, the Department must change the "Order Date" field ID to the *current date* and save the

requisition. The Department then forwards the invoices and the requisition to Purchasing.

6. Purchasing receives the invoices and requisition from the Department Head. If the total value of the requisition is less than \$200, Purchasing posts the Purchase Order (PO). If the value of the requisition exceeds \$ 200, the Purchasing Agent must wait for Deputy Comptroller or Comptroller approval written for that specific purchase requisition on the “Unapproved Requisitions in Excess of \$200” report before posting the Purchase Order.
7. Once the Purchase Order is posted, Purchasing posts a receipt in Great Plains for the value of each invoice against the corresponding line item on the Purchase Order. The Purchasing Agent then verifies that all line items are received and that the PO is complete. At that point the Purchasing Agent sends a hard copy of the PO and the invoice(s) to the Comptroller’s office for vouchering in Accounts Payable.
8. The Comptroller’s Office reviews any requisitions over \$200 to confirm funding.

EMERGENCY PURCHASES:

POLICY:

All purchases of goods and services should be completed using an approved Purchase Order. However there are times when this is not possible due to an emergency.

Emergency requisitions are to be used to acquire parts for repairs or for services when there is an emergency need which would have a direct impact on the life, health and public safety to the general public as defined in General Municipal Law § 103(4). Once a situation has been identified as an emergency, parts for repairs and services can be acquired without going through normal procurement approvals and procedures. As soon as practical after the situation has been resolved, a requisitions or requisitions shall be entered into the Great Plains system for all emergency purchases made. The requisitions will be reviewed and approved as necessary and the Purchase Orders returned to the department. All invoices must be approved by the department manager and marked in red ink as an "emergency". The Town Board Resolution declaring the Emergency shall be attached to all emergency invoices. Emergency appropriations may be unbudgeted, or in excess of budgeted funds.

Procedures:

1. Department declares an Emergency Situation per GML 103(4)

2. Purchases of goods and services are made to resolve the emergency situation.
3. As soon as practical after the situation has been resolved, requisitions for the purchases of said goods and services are entered into the Great Plains system.
4. Requisitions are reviewed and approved and Purchase Orders are sent to the Department.
5. All related invoices are approved by the Department Head and marked in Red Ink with “Emergency”. The Emergency Town Board Resolution shall be attached to the emergency invoices. Any differences between the original requisition and the invoice such as amounts, fund numbers, quantities are updated in the Great Plains system by the **initiating** department and sent to Purchasing for processing.

Straight Claims vs. Requisitions and Purchase Orders

POLICY:

Straight claims are forms that are submitted with vendor invoices to request payment under particular procurements. Use of a Straight Claim form does not require purchase orders. In most cases the use of a Straight Claim form does require a current, signed contract awarded from the Town of Colonie to the vendor. As with all purchases, all appropriations must be budgeted and if not must have prior approval from the Comptroller regardless of dollar limitations.

PROCEDURE:

Straight Claim forms are to be used for invoices for the following procurements:

1. Utility Payments – National Grid, Electric Supply, Natural Gas Supply, Water and Sewer payment, telephone including cell phone invoices.
2. Tax Bill Payments
3. Public Works projects where an engineering firm is managing the project.
4. Professional Service payment such as Attorney, engineer, Auditor.
5. Monthly Equipment Rental payment.
6. Subscriptions and membership payment and renewals
7. Postage expenses
8. Grant Payment to outside entities and reimbursement of clients

9. Annual Assessments/fees from Federal, State, County or other government agencies.

Straight Claims shall not be used for the following and the normal Purchasing System shall be used:

1. Any invoice to be processed where a requisitions has already been opened in the Great Plains system.
2. Public Works projects bid by the Town Purchasing Department and managed by Town personnel.
3. Purchases made through State Contracts, Cooperative Contracts, and purchases made as the result of Bids and quotes.
4. Legal notice publications.
5. Routine services such as industrial gases, fuel, road salt, cleaning supplies, etc.

Claim forms are processed directly through the Comptroller's Office and do not need Purchasing review. When practical the claimant certifications should be completed before the form is delivered to the Comptroller's Office.

Disposal of Town Surplus Property

Policy:

The policy to dispose of surplus property shall meet the following criteria:

1. The items will be disposed of in the most cost effective and environmentally responsible manner possible.
2. Every effort shall be made to get the best return to the Town on any property to be disposed of that may have significant residual value.
3. Items to be declared surplus by the Town Board include those items with a value of \$1,000 or more. These items will generally be auctioned off to the public to obtain the best value for the Town.
4. Items considered to have a value of under \$1,000 will be disposed of in a manor determined by the General Services Director.

PROCEDURE:

1. The Department is responsible for determining that an item is surplus and no longer needed by the department.
2. For items on the Department Fixed Asset Report, please contact the Town Comptroller Department to determine remaining book value. See Attached Fixed Asset Disposition form.
3. If the item is a motor vehicle or a large piece of equipment please notify the Fleet Maintenance Supervisor of the fact this item is now surplus.
4. The Fleet Maintenance Supervisor will review the maintenance records for this item and determine if it is suitable to be offered to another department that may have a need for the item.
5. If the item is deemed not needed by another department, or not suitable for the Town to keep, Fleet Maintenance will work with General Services on the appropriate disposal method.
6. If the surplus item is office equipment, furniture, or other similar items, please notify the General Services Director that you have surplus items. Information needed about the items includes the item description, age, working condition, any value estimate, and your recommendation as to disposition.

DISPOSAL PROCESS:

Public Auction: The items that have a value of over \$1,000 will generally be auctioned to the public. This auction shall be administered by the General Services Department in cooperation with Fleet Maintenance for vehicles and equipment. All items to be auctioned shall be submitted for approval to the Town Board prior to the beginning date of the auction.

Open Competitive Bid: Some items might be best disposed of through the formal open competitive bid process. For these items all normal bid processes will be followed.

Vehicle Buyers: Obtain quotes from companies that are in business to buy used vehicles such as CARVANA, CarMax, for example. If this method is used the Town will attempt to obtain 3 quotes to get the best offer for the vehicle.

Vehicle Auctions: At the recommendation of the Fleet Manager, offer the vehicle for sale through a local vehicle only auction if it is his belief the Town can obtain a better price than other methods.

Donation: Donation to another municipality or political subdivision is another option the Town Board may consider.

Sale to another Municipality: Surplus and second-hand items may be sold to other political subdivisions or public benefit corporations within the State.

Disposal: Item valued at less than \$1,000 may be disposed in the most cost effective, environmentally appropriate manner as determined by the General Services Director. The available methods include proper disposal as trash, scrap disposal through the Landfill process, or junked. Any items disposed, scrapped, or junked will be itemized and that list provided to the Town Comptroller's office for proper record keeping. The manner of disposal shall be indicated for each item. If the item is unique or there is an indication that it would be better disposed through auction or donation, Town Board approval shall be requested to proceed with that disposal method. If the item is valued at \$1,000 or more, but has no useful remaining life, Town Board approval shall be obtained prior to the item's disposal.

Computer Disposal: Any computer items deemed to be surplus and to be disposed must be coordinated through the MIS Department. Special consideration shall be taken to remove any data, software, or propriety information prior to disposal. MIS shall coordinate the actual disposal with General Services.

Town of Colonie Apprenticeship Program Policy

Policy:

In accordance with Town of Colonie Town Board Resolution No. 144 for 2015 of February 26, 2015 and Section 816-b of the New York State Labor Law, contractors and subcontractors of Town construction contracts of \$750,000 or more shall have in place agreements providing appropriate apprenticeship training programs approved by the Commissioner of the

Department of Labor for the type and scope of work to be performed before the contracts are let. These agreements shall conform to the procedures and requirements set forth in Section 816-b of the New York State Labor Law. The Apprenticeship policy is administered through the Town Procurement Policy. However the ultimate authority as to compliance with the policy is with the Commissioner of Public Work or his designee and the Town Attorney's Office.

The Apprenticeship policy includes the following provisions and requirements:

- All contractors and their subcontractors on contracts for public works projects of \$750,000 or more must comply with this policy regardless of the subcontractor's actual dollar amount of work provided.
- Any subcontractor used on the project must be to provide a trade or service not provided by the contractors own work force for purposes of this policy and compliance verification.
- Compliance with the policy includes providing proof of compliance for all trades to be employed on the project. Determination of the trades to be included is at the sole discretion of the Commissioner of Public Works or his designee and the Town Attorney's Office.
- For Town bids issued by Town contracted professional firms, proof of compliance with the apprenticeship program policy will be provided to the Town by the professional firm along with any recommendation letters. The Town reserves the right to request additional verification of program compliance as necessary.
- In call cases, such apprenticeship program must be specific to the type and scope of work that is being performed and must have a graduation rate of at least thirty percent (30%) as determined by the New York State Department of Labor.
- For Bids administered by the Town directly, proof of compliance with the apprenticeship program shall be supplied by the apparent low bidder to the Town Purchasing Department within two (2) business days of the bid tabulation being completed and available to the public. The Town reserves the right to request additional documentation to verify compliance. All requested information must be provided within two (2) business days from the request.
- Failure of the low bidder to provide acceptable documentation within the time frames above will be deemed non-compliance with the

program and the Town will move to the next low bidder. That bidder will have two (2) business days to provide acceptable verification.

Acceptable forms of compliance with the apprenticeship program are as follows:

1. Contractor or subcontractor having their own Department of Labor approved program for the trades to be used on the project. Verification of the approved program(s) of the New York State Department of Labor website is acceptable proof of compliance.
2. Contractor or subcontractor who is a direct signatory with a labor union that has a Department of Labor approved program for the trades to be used on the project. Verification of compliance must include the following:
 - a. Letter on company letterhead from Contractor or subcontractor outlining signatory status with a labor union and trades covered by that agreement.
 - b. Documentation from the labor union identified confirming signatory status and access to labor union apprenticeship program.
 - c. Verification from New York State Department of Labor website of an approved program(s) for the labor union.

Any questions regarding this policy or compliance requirements shall be directed in writing to the General Services Director at the following:

Town of Colonie
Purchasing Department
534 New Loudon Road
Latham, NY 12110
Or
purchasing@colonie.org

General Information

Purchases of supplies and services involving an estimated overall annual expenditure by the Town of over \$20,000 of like goods or any single public works contracts over \$35,000 will be awarded only after public advertising and solicitation of formal bids, or use of other appropriate means as allowed by law.

This includes one-time purchases, a contract or blanket purchases. Excluded from this are professional services, which are secured through a Request for Proposal.

Legal notices are published in the official Town newspapers, informing the public of the products or services being bid, listed on the Town website, as well as being posted online at the Empire State Procurement Group site:
<http://www.empirestatebidsystem.com/>

Where formal bidding procedures are not required by law and/or resolution, pricing will be solicited by the Requesting Department or Purchasing Department pursuant to the procedure set forth in Section 104-b of General Municipal Law and this document.

The only exceptions are for procurement made pursuant to General Municipal Law, Section 103(3) (through County contracts) Section 103(16) (through National Cooperatives) or Section 104-b (through state contracts); State Finance Law, Section 175-b (from agencies for the blind or severely handicapped); Correction Law, Section 186 (articles manufactured in correctional institutions); and approved schedules through the Federal GSA program.

Any request to award a quote or bid to any vendor other than the lowest responsible bidder must include documentation by the requesting department with reasons and justification for the award. The documentation shall be reviewed by the General Services Director in counsel with the Town Attorney's Office prior to any award being made.

In certain situations, solicitation of alternative proposals or quotes is not practical. These may include: emergencies, true leases and sole source situations and combinations of professional services/purchases. In each of these cases, the requesting department, Purchasing, and the Town Attorney's Office shall analyze, justify and clearly document the reasons behind the award. No awards shall be made before contacting the Purchasing Department.

Sole Source & Single Source

Sole source procurement is an exception to the general rules and policies stated herein governing the procurement of goods and/or services. Sole source procurement may only be used in those rare cases where the goods or services sought and required are manufactured, sold or performed by only

one entity and/or individual.

Generally, this will only apply in the following situations:

1. Only one company makes and sells a certain good or provides a certain service.
2. Only one company can service or maintain the equipment without voiding the warranty. (Note: This only applies during the warranty period. The sole source exemption is not available after the warranty expiration. After warranty expiration, repairs and maintenance must be bid.)
3. The Town is leasing equipment like postal machines or copiers that have a certain type of consumable component (e.g. ink cartridges) that must be used to avoid breaching a warranty or maintenance provision of a lease.
4. It is a service performed by companies that traditionally have territories (e.g. cable TV or certain types of equipment dealerships).
5. Software licensing, maintenance, and/or installation contracts specific to the software being purchased, inclusive of upgrades or improvements to existing software systems.

In determining whether a purchase qualifies for a Sole Source exemption, the procuring department must document, at a minimum:

1. The unique benefits to the Town of the product or service as compared to the other products or services available in the marketplace;
2. That no other product or service provides substantially equivalent or similar benefits;
3. That considering the benefits received, the cost of the product or service is reasonable in comparison to other products or services in the marketplace; and
4. That there is no possibility of competition from competing dealers or distributors.

Sole Source purchases will be reviewed by Purchasing and approved based on the written justification from the Requesting Department responding to points (1) through (4) above and supporting documentation on the letterhead of the entity providing the goods, equipment, commodity or service that they are the sole source.

Emergency Purchase

What is considered an emergency? GML 103 (4) defines it as “a public emergency arising out of an accident or other unforeseen occurrence or condition, whereby circumstances affecting public buildings, public property or the life, safety or property of the inhabitants requires immediate action”. Lack of anticipation or planning cannot be deemed as a cause for declaring an emergency. A true emergency does not exclude the need for securing competitive pricing, only the formal bidding process. Purchasing should be contacted as soon as the emergency need is identified to secure pricing.

Professional Services

Professional Services are not subject to competitive sealed bidding requirements, but are subject to the guidelines of GML 104-b for competitive pricing to be obtained for these services. (See Purchasing Procedures section)

Purchase Requisition

The Purchase Requisition provides the means of initiating the Purchase Order process for goods and services. The Purchasing Department is designated to review and process requisitioners' requests; it is the individual department heads' responsibility to insure that expenditures are within the budgetary appropriations and that the proper department account is charged.

The Comptroller's Office and the Purchasing Department must approve the funding of every requisition prior to it being converted to a Purchase Order. Purchasing approved requisitions up to and including \$200.00. The Comptroller's Office approves all over \$200.00.

Should there be insufficient funds available departments must do a budget transfer and secure all the necessary approvals before the order can be processed.

Preparation:

The requisitioning department will enter the Requisition on the Town Great Plains Purchasing software system.

If the department has a definite reason for ordering from a specific vendor it should be noted in the comments, the Purchasing Department will make the final decision as to price and vendor after reviewing the requisition and consulting with the using department. Adequate documentation shall also be provided with all requisitions, such as any received quotes, references and full descriptions of the items/service being ordered, so that Purchasing may procure the desired items/service in a timely fashion.

Planning

Anticipate your needs! Once you have determined what you need, within the limitations of your budget, contact purchasing to help you develop the specifications for the quote or bid to get the best value possible for the expenditure of tax dollars.

The key is time; turnaround time is dependent on many factors ranging from the complexity of the specifications, and the need for a pre-bid meeting and addendums to the number of bids and quotes currently in process with Purchasing.

Prepayments

Town of Colonie takes the position that unless absolutely necessary, that prepayments should not be made using Town funds.

Contact the Purchasing Department to assist you in making the purchase.

Purchase Orders

The purchase order provides a formal document authorizing the purchase of goods and services as well as the necessary authority to pay vendor claims and proof of tax-exempt sales. Purchase orders are prepared by the Purchasing Department upon receipt of a **complete** purchase requisition with all the necessary documentation such as contracts, quote, funding, etc.

The Purchasing Department verifies the following before issuing a purchase order:

1. Type of purchase requested
2. Requisitioning department/ship to location
3. Vendor information
4. Contract/Bid/quotation information
5. Comments/special instructions
6. Description of goods and services being ordered
7. Quantity/unit of measure
8. Unit price/extension and total cost
9. Fund Number(s)

The Purchasing Department will confirm the best method of procurement upon receipt of a requisition. If available, a current Town bid, NYS contract or available piggybacking options will be used.

With very few exceptions, a purchase orders must be completed before a purchase is made.

If at any time a department finds they will require a competitive bid for a particular product or service, they should notify the Purchasing Department to allow time for specifications to be developed and the formal bid process to be completed, to meet their anticipated needs.

Open Purchase Orders

An open purchase order is created for products or services that are purchased on an “as needed” basis from a vendor throughout the year where the dollar value will vary for each purchase and an established contract is in place. These are issued monthly as needed and the dollar amounts are limited to \$200.00 per department. The money

for an Open Purchase Order is not encumbered until a receipt transaction is entered into the order

Departments are responsible for providing the open purchase order number to the vendor and verify that the number also appears on the documentation sent to Purchasing for payment processing.

Emergency Purchase Order

The Purchasing Department will **not approve** an emergency purchase order when the purchase is not justified, where the purchase is being made to circumvent established procedures, or where there is a lack of proper planning.

Receipt and Payment of Goods and Services

Upon receipt of goods and services, the department confirms quantity or completion of the service. As standard business procedure, all Town vendors are entitled to prompt payment; therefore receipts should be processed on a day-to-day basis.

Delayed Deliveries and Inferior Material Received

Purchasing endeavors to get departments the right material and on time. There will be occasions when inferior goods or services are received or they are not received in a reasonable amount of time. If this should occur you should report the problem to Purchasing as soon as possible. This can be done via email or phone, remember to include the vendor name, PO Number, the problem you have with the order and what you have done thus far to attempt to correct the situation.

Purchasing will contact the vendor after the receiving department has tried to resolve the issue and try to come to a resolution of the problem; if necessary the Town Attorney's Office will be contacted for assistance.

Department of Labor- Notice to Withhold Payment

On occasion the New York State Department of Labor, Bureau of Public Works upon receiving complaints for non-payment of prevailing wages shall direct the Town to withhold monies due to a vendor. The original notice is forwarded to the Comptroller's Office; a copy is kept in Purchasing and a copy forwarded to the

Town Attorney's Office. These monies are held until notification is received from the Department of Labor on how they are to be disbursed.

Competitive Bidding

1. AGGREGATE PURCHASES OF LIKE ITEMS IN A 12 MONTH PERIOD WHICH ARE IN EXCESS OF \$20,000 USED BY THE TOWN
2. PUBLIC WORKS CONTRACTS EXCEEDING \$35,000 EACH

General Municipal Law Sections 103 and 104-b require annual purchase contracts exceeding \$20,000 and public works contracts exceeding \$35,000 be awarded to the lowest responsive/responsible bidder, or bidder offering the "Best Value" bid meeting the intent of the specifications after public advertising requesting submission of sealed bids.

In determining the necessity for competitive bidding, the **aggregate cost** of like items or commodities estimated to be purchased Town wide in a 12- month period are considered. (The 12 months beginning with the date of the first purchase)

The using department(s) in conjunction with the Purchasing Department shall prepare bidding specifications; all bids shall include a non-collusion certification and indemnification agreement and all other documents required by General Municipal Law.

Formal bids/quotes containing a renewal clause shall clearly state the original term and any possible renewals terms if mutually agreeable by the vendor and the Town of Colonie.

The advertisement for bids shall at a minimum contain a description of the goods and/or services being solicited, a statement of the time and place where all bids will be publicly opened and read, the time and place of any pre-bid meetings and a description of where and how bid documents may be obtained. All bid openings will be conducted at a public meeting and all interested parties may attend.

Plan holders lists shall not be released prior to a bid opening as this may adversely affect the bids received and/or encourage collusion. Any requests received by a Town department for this information are to be directed to Purchasing. No exceptions are made to this policy.

After the public opening of a sealed bid a tabulation sheet shall be prepared recording all pricing as submitted by the responding vendors. Purchasing shall review the bid responses and prepare a bid tabulation. This along with the copies of the bid responses and all supporting documentation needed to evaluate the bid responses shall be forwarded to the using department for review and award recommendation. Once the using department and the Purchasing Department are in agreement as to the responsive/responsible or best value vendor, the using department will create a Town Board Agenda Request Form for the Town Board to make the award.

If during the evaluation of the bid results it is determined not to proceed with a bid award, the using department shall prepare a Town Board Agenda Request form to reject all bids. New York State Comptrollers opinion 297 requires an acceptance or rejection of formal sealed bids as they are a legal binding offer and some action must be taken by the authorizing Board

All renewals shall be coordinated through Purchasing and must be submitted to the Town Board for final approval.

Agreements and Contracts for multi-department use are handled by Purchasing and are submitted to the Town Board for approval.

Bid Approval Process

Bids for goods and services will be awarded by Town Board resolution after the following conditions are met:

1. Sufficient appropriations are contained within the departments' current budget (or budget transfer has been completed)
2. The department head or their designated representative and the Purchasing Director have certified in writing that the bids were received and meet the intent of the specifications
3. The award is made to the bidder submitting the lowest responsive and responsible bid per specifications or the bidder offering the "Best Value" bid that meets the bid specifications.
4. The using department shall document the rejection of any low bid deemed non-responsive or non-responsible. The using department shall attach a copy of said documentation to the Town Board Agenda Request Form and a copy shall be supplied to Purchasing. Said documentation shall be included in the bid file.

Conflict of Interest

Any Town employee who has, will have, or acquires an interest in, any actual or proposed contract with the Town of which he/she is an officer or employee, shall publicly disclose the nature and extent of such interest in writing as part of the Town Of Colonie Ethics disclosure as soon as he/she has knowledge of an actual or prospective interest. **If an officer or employee has a reason to believe that he/she may have a conflict of interest, the office of the Town Attorney should be contacted immediately.**

Public Works Contracts

How do you define a “Public Works Contract”? Any time an item or project involves labor or both materials and labor (other than simple delivery of goods) it qualifies, such as contracts for construction, demolition, remodeling, maintenance, painting, paving and repair contracts.

When do I need prevailing wages? Whenever you employ laborers, workmen or mechanics you need to pay prevailing rates according to Article 8 and 9 of the New York State Labor Law, no matter what the dollar amount. Certified payrolls are required before payment is authorized and copies are to be kept on file by the Town Attorney’s Office.

Certificates of Insurance

Town of Colonie is “self-insured” and for that reason we maintain evidence of vendor insurance, with ACORD forms on file for vendors who provide services to the Town. Depending on the work performed there are various categories of coverage and dollar levels required.

Before the Town can enter into a contract with a vendor, valid insurance forms must be on file; this includes proof of workers compensation and disability forms as required by New York State Workers Compensation and Disability Laws.

Standardization

General Municipal Law Section 103 makes it possible for the Town to standardize on a particular type of material or equipment. A resolution approved by at least three-fifths majority of the Town Board, shall state that for reasons of efficiency or economy there is a need for standardization.

The resolution shall contain a full explanation supporting such action.

The adoption of such a resolution does not eliminate the necessity for conformance to the competitive bidding requirements. Standardization, restricts the purchase to a specific model or type of equipment or supply, but does not limit the vendors it can be purchased from.

Standardization should be used very sparingly and only after careful consideration of the ramifications to future purchases and maintenance costs as this tends to reduce or in some cases eliminate completely competition thus costing the Town more than it may save by standardizing.

Fixed Asset Management System

The purpose of the fixed asset management system is to establish proper procedures for monitoring the movement of fixed assets to maintain accurate reporting of asset values as required by NYS Audit and Control.

General Town Property

The Town Board gives the Purchasing Director the responsibility not only to purchase, but also to dispose of and/or transfer supplies, materials and equipment.

Each department head has the ultimate responsibility to conduct and maintain the individual inventory pertaining to that department. It is also the responsibility of the department head to evaluate on a continuing basis the suitability and need for

materials, supplies and equipment. If they should become obsolete by reason of age, wear or technical advancement or should become surplus, unnecessary for the operation of his/her department, the department should follow the process outlined in the Disposal of Surplus policy. Purchasing will evaluate the request and determine if the item will sold, put up for claim by a Town department or trashed.

Fixed Assets

Fixed assets are defined as those properties the Town of Colonie retains more or less permanently, not for sale, but for utilization in the normal course of operations

Fixed assets will always imply tangible fixed assets, the general accepted practice, as in Town of Colonie, is to record a report fixed assets at their historical acquisition cost. The cost of a fixed asset should include all expenses of transporting the asset to the proper location and placing it in the condition necessary for its intended use. Only items costing five thousand dollars (\$5,000.00) or more will be inventoried. This limit has been established as assets under five thousand dollars cost, due to time, effort and paperwork cost involved, do not warrant being inventoried. This will be Town policy and all items under the five thousand dollar cost shall be considered supplies and inventory control managed within the department.

The Comptroller's Office staff will conduct periodic fixed asset exams as they see fit to assure Town departments are properly tracking Town assets and are prepared for New York State Auditors'.

Receiving

The majority of purchase orders are for delivery to the requisitioning department.

Upon receipt of an asset valued over \$5,000, Purchasing will complete the Fixed Asset Card for the new asset as part of the invoice receipting process.

The only exception to this procedure will be for computer equipment that will be maintained and tagged by the Management Information Services Department. MIS will record transfers of equipment and obsolete computer equipment shall be disposed of upon approval by the MIS Director using the Town's Surplus Disposal Policy. MIS will track all computer related items regardless of dollar value and maintain a database for all items including those awaiting assignment and disposal.

Disposal of large equipment and vehicles shall be done by way of on-line auction or open competitive bid depending on the condition and remaining value of the asset.

Procedures for Federal Grant Administration Requirements

Procurement Standards

The Town of Colonie does not have a centralized grants department, therefore it is the responsibility of each department obtaining a grant to administer, and be familiar with, all grant documents and requirements. If it is a Federal Grant, the department should immediately notify the Town of Colonie Comptroller's Office and Purchasing for guidance and assistance. For purposes of this policy Department Head applies to the individual within a given department who will be responsible for the grant.

Uniform Guidance Compliance Supplement – General Information

The following financial policies have been separately reviewed and approved by the Colonie Town Board. These policies are incorporated into this document by reference. All of the policies below are applicable to Federal grants where appropriate:

Town of Colonie Procurement Policies and Procedures

Code of Ethics of the Town of Colonie (Local Law No. 13 of 1990, Chapter 17 of the Town Code)

Affirmative Action Policy

Uniform Guidance Compliance – Procurement Standards

The type of purchase procedures required depends on the cost of the item(s) being purchased.

Note, the Town's procurement policy is more restrictive than the federal purchase methods below, departments must always follow the most restrictive policy.

Sealed Bids (Formal Advertising): For purchases over \$20,000 bids are publicly solicited and a firm fixed price contract (lump sum or unit price) is awarded to the responsible bidder whose bid, conforming with all the material terms and conditions of the invitation for bids, is the lowest in price. The sealed bid method is the preferred method for procuring construction, if the following conditions apply:

A complete, adequate, and realistic specification or purchase description is available;

- Two or more responsible bidders are willing and able to compete effectively for the business; and
- The procurement lends itself to a firm fixed price contract and the selection of the successful bidder can be made principally on the basis of price.

If sealed bids are used, the following requirements apply:

- Bids must be solicited from an adequate number of known suppliers, providing them sufficient response time prior to the date set for opening the bids, for state, local, and tribal governments, the invitation for bids must be publically advertised;
- The invitation for bids, which will include any specifications and pertinent attachments, must define the items or services in order for the bidder to properly respond;
- All bids will be opened at the time and place prescribed in the invitation for bids, and for local and tribal governments, the bids must be opened publicly;
- A firm fixed price contract award must be made in writing to the lowest responsive and responsible bidder.

Where specified in bidding documents, factors such as discounts, transportation cost, and life cycle costs must be considered in determining which bid is lowest. Payment discounts will only be used to determine the low bid when prior experience indicates that such discounts are usually taken advantage of. Any or all bids may be rejected if there is a sound documented reason.

Competitive Proposals: The technique of competitive proposals is normally conducted with more than one source submitting an offer, and either a fixed price or cost-reimbursement type contract is awarded. It is generally used when conditions are not appropriate for the use of sealed bids.

If this method is used, the following requirements apply:

- Requests for proposals must be publicized and identify all evaluation factors and their relative importance. Any response to publicized requests for proposals must be considered to the maximum extent practical;
- Proposals must be solicited from an adequate number of qualified sources; and

- Contracts must be awarded to the responsible firm whose proposal is most advantageous to the program, with price and other factors considered.

The Town may use competitive proposal procedures for qualifications-based procurement of architectural/engineering (A/E) professional services whereby proposers' qualifications are evaluated and the most qualified proposer is selected, subject to negotiation of fair and reasonable compensation. The method, where price is not used as a selection factor, can only be used in procurement of A/E professional services. It cannot be used to purchase other types of services though A/E firms are a potential source to perform the proposed effort.

Contract/Price Analysis: The Town performs a cost or price analysis in connection with every procurement action in excess of \$20,000, including contract modifications. 2 C.F.R. § 200.323(a). A cost analysis generally means evaluating the separate cost elements that make up the total price, while a price analysis means evaluating the total price, without looking at the individual cost elements.

The method and degree of analysis is dependent on the facts surrounding the particular procurement situation; however, the Department Head must come to an independent estimate prior to receiving bids or proposals. 2 C.F.R. § 200.323(a).

When performing a cost analysis, the Department Head negotiates profit as a separate element of the price. To establish a fair and reasonable profit, consideration is given to the complexity of the work to be performed, the risk borne by the contractor, the contractor's investment, the amount of subcontracting, the quality of its record of past performance, and industry profit rates in the surrounding geographical area for similar work. 2 C.F.R. § 200.323(b).

The cost plus a percentage of cost and percentage of construction cost methods of contracting must NOT be used.

Noncompetitive Proposals (Sole Sourcing)

Procurement by noncompetitive proposals is procurement through solicitation of a proposal from only one source and may be used only when one or more of the following circumstances apply:

- The item is available only from a single source;

- The public exigency or emergency for the requirement will not permit a delay resulting from competitive solicitation;
- The federal awarding agency or pass-through entity expressly authorizes noncompetitive proposals in response to a written request from the Town; or
- After solicitation of a number of sources, competition is determined inadequate.

Full and Open Competition

All procurement transactions shall be conducted in a manner providing full and open competition consistent with 2 C.F.R § 200.319. In order to ensure objective contractor performance and eliminate unfair competitive advantage, contractors that develop or draft specifications, requirements, statements of work, or invitations for bids or requests for proposals must be excluded from competing for such procurements.

Solicitation Language

The Town shall ensure that all solicitations incorporate a clear and accurate description of the technical requirements for the material, product, or service to be procured. Such description must not, in competitive procurements, contain features which unduly restrict competition. The description may include a statement of the qualitative nature of the material, product or service to be procured and, when necessary, must set forth those minimum essential characteristics and standards to which it must conform if it is to satisfy its intended use. Detailed product specifications should be avoided if at all possible.

When it is impractical or uneconomical to make a clear and accurate description of the technical requirements, a “brand name or equivalent” description may be used as a means to define the performance or other salient requirements of procurement. The specific features of the named brand which must be met by offers must be clearly stated; and identify all requirements which the offerors must fulfill and all other factors to be used in evaluating bids or proposals. 2 C.F.R § 200.319(c).

Geographical Preferences Prohibited

The Town shall conduct procurements in a manner that prohibits the use of statutorily or administratively imposed state, local, or tribal geographical preferences in the evaluation of bids or proposals, except in those cases

where applicable federal statutes expressly mandate or encourage geographic preference. When contracting for architectural and engineering (A/E) services, geographic location may be a selection criterion provided its application leaves an appropriate number of qualified firms, given the nature and size of the project, to compete for the contract.

Prequalified Lists

The Town shall ensure that all prequalified lists of persons, firms, or products which are used in acquiring goods and services are current and include enough qualified sources to ensure maximum open and free competition. Also, the Town must not preclude potential bidders from qualifying during the solicitation period.

Avoiding Acquisition of Unnecessary or Duplicative Items

The Town shall avoid the acquisition of unnecessary or duplicative items. Additionally, consideration is given to consolidating or breaking out procurements to obtain a more economical purchase. And, where appropriate, an analysis must be made of leases versus purchase alternatives, and another other appropriate analysis to determine the most economical approach. These considerations are given as part of the process to determine the allow ability of each purchase made with federal funds.

Use of Intergovernmental Agreements

To foster greater economy and efficiency, the Town enters into state and local intergovernmental agreements where appropriate for procurement or use of common or shared goods and services.

Use of Federal Excess and Surplus Property

The Town considers the use of federal excess and surplus property in lieu of purchasing new equipment and property whenever such use is feasible and reduces project costs.

Debarment and Suspension

The Town awards contracts only to responsible contractors possessing the ability to perform successfully under the terms and conditions of a proposed procurement. Consideration will be given to such matters as contractor integrity, compliance with public policy, record of past performance, and financial and technical resources.

The Town may not subcontract with or award sub grants to any person or company who is debarred or suspended. For all contracts over \$20,000 for

commodities, and \$35,000 for public works the Town verifies that the vendor with whom the Town intends to do business with is not excluded or disqualified. 2 C.F.R. Part 200, Appendix II (1) and 2 C.F.R. §§ 180.220 and 180.300. This is done by the Department Head by checking on Sam.gov and by completing the Vendor Responsibility Questionnaire.

Maintenance of Procurement Records

The Town shall maintain records sufficient to detail the history of all procurements. These records will include, but are not necessarily limited to the following: rationale for the method of procurement, selection of contract type, contractor selection or rejection, the basis for the contract price (including a cost or price analysis), and verification that the contractor is not suspended or debarred (to be supplied by the Department Head, as described above).

Settlements of Issues Arising Out of Procurements

The Town alone is responsible, in accordance with good administrative practice and sound business judgment, for the settlement of all contractual and administrative issues arising out of procurements. These issues include, but are not limited to, source evaluation, protests, disputes, and claims. These standards do not relieve the Town of any contractual responsibilities under its contracts. Violations of law will be referred to the local, state, or federal authority having proper jurisdiction.

Protest Procedures to Resolve Dispute

The Town maintains protest procedures to handle and resolve disputes relating to procurements and, in all instances, discloses information regarding the protest to the awarding agency.

Standards of Conduct

In accordance with 2 C.F.R. §200.18(c)(1), the Town maintains the following standards of conduct covering conflicts of interest and governing the actions of its employees engaged in the selection, award and administration of contracts.

No employee, officer, or agent may participate in the selection, award, or administration of a contract supported by a federal award if he or she has a real or apparent conflict of interest. Such a conflict of interest would arise when the employee, officer, or agent, any member of his or her immediate family, his or her partner, or an organization which employs or is about to employ any of the parties indicated herein, has a financial or other interest in or a tangible personal benefit from a firm considered for a contract.

The officers, employees, and agents of the Town may neither solicit nor accept gratuities, favors, or anything of monetary value from contractors or parties to subcontracts, unless the gift is an unsolicited item of nominal value.

Bonding requirements §200.325

For construction or facility improvement contracts or subcontracts exceeding the Simplified Acquisition Threshold, the Town shall require:

1. A bid guarantee from each bidder equivalent to five percent of the bid price.
2. A performance bond on the part of the contractor for 100 percent of the contract price.
3. A payment bond on the part of the contractor for 100 percent of the contract price.

Contract provisions §200.326

The Town's contracts will contain the applicable provisions described in Appendix II to Part 200.

BID PROTEST POLICY

Policy: It is the policy of the Town of Colonie General Services Department, Division of Purchasing (Purchasing) to provide vendors with an opportunity to administratively resolve "Bid Protests" or inquiries related to bid solicitations or contract awards. Bidders are encouraged to seek resolution of disputes through consultation with designated contacts. All such matters will be accorded full, impartial and timely consideration.

Interested parties may also file a formal written dispute according to the following procedures.

Formal Protests:

A. Definitions

1. “Filed” means the complete receipt of any document by Purchasing before its close of business.
2. “Interested Party” for the purpose of filing a dispute relating to a solicitation, as used in this section, means an actual or prospective bidder or offeror whose direct economic interest would be affected by the award of a contract or by the failure to award a contract.
3. “Interested Party” for the purpose of filing a dispute relating to a contract award, as used in this section, means an actual bidder or offeror for the subject contract.
4. “Issuance of Award” means the date of the Colonie Town Board Resolution awarding the Contract.
5. “Dispute” means a written objection by an interested party to any of the following:
 - a. A solicitation or other request by Purchasing for offers for a contract for the procurement of commodities, services and all construction services.
 - b. The cancellation of the solicitation or other request by Purchasing.
 - c. An award by the Town Board or proposed award of the contract by Purchasing.
 - d. A termination or cancellation of an award of the contract by Purchasing.

B. Submission of Protests

1. A formal dispute by an interested party as defined in A. 2 or 3 must be in writing to Purchasing by certified mail or facsimile.
2. The dispute must include:
 - a. Name, address, e-mail address, fax and telephone numbers of the filer.
 - b. Solicitation Name and Opening Date.

- c. Detailed statement of the legal and factual grounds for the dispute, including a description of resulting prejudice to the filer.
 - d. Copies of relevant documents.
 - e. Request for a ruling by the agency.
 - f. Statement as to the form of relief requested.
 - g. All information establishing that the filer is an interested party for the purpose of filing a dispute.
 - h. All information establishing the timeliness of the dispute.
3. Disputes should be filed with the Director of General Services at the following address:
- Town of Colonie
General Services Department, Division of Purchasing
534 New Loudon Road
Latham, NY 12110
Facsimile: (518) 786-7329
4. Disputes concerning a solicitation shall be filed by an Interested Party (see A.2) with Purchasing no later than 4:00 PM one day prior to the date set in the solicitation for receipt of bids.
5. Disputes concerning a pending or awarded contract must be filed within ten (10) business days by and Interested Party (see A.3) after the disputing party knows or should have known of the facts which form the basis of the dispute: however, a dispute may not be filed later than ten (10) days after Issuance of the Award.
6. Purchasing may consider the merits of any dispute.

C. Submission of Protests

1. The General Services Director will consider all information relevant to the dispute, and may, at his/her discretion, suspend, modify, or cancel the disputed procurement action prior to issuance of a formal dispute decision.
2. The General Services Director reserves the right to wave or extend the time requirements for decisions and final determination on appeals herein prescribed when, in his/her sole judgment, circumstances so warrant.

3. Notice of Decision: A copy of the decision, stating the reason(s) upon which it is based and informing the filer of the right to appeal an unfavorable decision to the Town Attorney shall be sent to the filer or its agent by certified mail within thirty (30) business days of receipt of the dispute.

D. Appeals

1. Should the filer be dissatisfied with the dispute determination, a written appeal may be directed to:
Town of Colonie
Town Attorney
534 New Loudon Road
Latham, NY 12110
Facsimile: (518) 786-7324
2. Written notice of appeal of a determination regarding a dispute of the Town's bid solicitations, a pending contract award and/or contract award must be received at the above address no more than (3) three business days after the date the decision is received by the filer. The decision of the General Services Director shall be a final and conclusive determination unless appealed to the Town Attorney within such time period.
3. The Town Attorney shall hear and make a final determination on all appeals or may designate a person or persons to act on his/her behalf. The final determination on the appeal shall be issued within twenty (20) business days of receipt of the appeal.
4. An appeal of the decision of the General Services Director shall not include new facts and information unless requested in writing by the Town Attorney.

E. Legal Appeals

Nothing contained in these provisions is intended to limit or impair the rights of any vendor or contractor to seek and pursue remedies of law through the judicial process.

TOWN OF COLONIE CHANGE ORDER POLICY

Alterations to construction contracts or other service contracts are called Change Orders. Change Orders authorize additional or altered work to be performed that is either necessary to complete the work in the original contract as intended or to add work that would not result in a material change to the scope of the contract.

Change Orders may occur due to:

1. The need to add work related to the original scope, to delete work, or to otherwise modify the original work scope;
2. Price overruns or underruns (on a unit price item);
3. Design errors or omissions;
4. Unanticipated field conditions; or
5. Non-material scope of work changes.

A Change Order may not be used to circumvent the competitive bidding requirements under General Municipal Law section 103 and 104-b where the supplemental work so varied from the original plan, was of such importance, or so altered the essential identity or main purpose of the contract, that it constitutes a new undertaking. Change Orders are not subject to competitive bidding requirements because they are not viewed as new procurements. The Town is allowed to modify contracts without competition so long as such modification does not alter the essential identity or main purpose of the contract.

While it is not unusual to have deductive Change Orders, Change Orders usually increase the cost of the contract. All Change Orders that increase the cost of the contract must be approved by the Town Board. Accordingly, the work that is the subject of the Change Order may not be started prior to receipt of such Town Board approval. The relevant department head must provide supporting documentation for any Change Order which must be submitted as an attachment to the proposed resolution for Town Board consideration. This supporting documentation may take any form, a memorandum for example, but must include a description of the project as originally constructed, the change in work as compared to the work that was originally contemplated in the contract as well as supporting information describing why the Change Order does not constitute a change to the essential identity or main purpose of the original contract.

All proposed Town Board resolutions must be submitted by twelve o'clock noon (12:00 PM) on the Thursday prior to the date of the Town Board meeting for which the proposed resolution is to be considered. All Change Orders will be reviewed by the Town Attorney's Office as well as the Director of General Services prior to being scheduled for Town Board consideration. The Town Attorney's Office and Director of General Services will make the final determination as to whether any proposed Change Order constitutes a new project for which competitive bidding is required.

URGENT CHANGE ORDERS: The Town recognizes that certain Change Orders may arise which are so essential and of such urgency that a commitment of public funds must be made prior to the next Town Board Meeting. A Change Order may be considered Urgent for any number of reasons including but not limited to a likelihood of the public safety being put at risk or irreparable damage being done to the overall project if additional work is not immediately approved. If a department head deems a Change Order to be Urgent for any reason, the department head must submit all of the above mentioned materials along with a justification for the need to have the work immediately approved to the Director of General Services and the Town Attorney's Office. The Director of General Services and Town Attorney's Office will make the final determination as to whether any proposed Urgent Change Order is so essential as to warrant approval prior to being considered by the Town Board

POLICIES AND PROCEDURES FOR DETERMINING VENDOR RESPONSIBILITY

General

It is the goal of the Town of Colonie (Town) to procure goods or services only from responsible vendors. These policies and procedures shall provide a method for determining whether or not a vendor shall be declared non-responsible by the Town. In the competitive bidding process, responsibility need not be determined at the bid opening, but must be determined after the bid opening and before an award is made.

Determining Whether a Vendor is Responsible

A vendor responsibility determination is a conclusion reached by the General Services Director that a proposed contractor is reliable, trustworthy, financially sound and dependable for purposes of award of a service, construction or procurement contract.

To be considered a responsible vendor a company or individual should have appropriate legal authority to do business in New York, a satisfactory record of integrity, appropriate financial, organizational and operational capacity and controls and acceptable performance on previous governmental contracts, if any.

In determining whether a vendor is responsible, the General Services Director shall consider, but not be limited to, the following criteria:

- Sufficient financial ability
- Experience
- Judgments against the vendor for breach of contract
- Noncompliance with terms and conditions of previous contracts
(Note attached department requirements)
- Criminal conviction arising from contracting
- Debarment
- Failure to provide information
- An unsatisfactory or adverse answer on the Town of Colonie Bidders Qualification Questionnaire

An inappropriate response to any of the criteria identified above, or otherwise set forth in the applicable invitation for bids or request for proposals, may be cause to determine that a vendor is not responsible. The General Services Director is authorized to require a vendor to provide any additional assurances of responsibility, including but not limited to, requiring the vendor to provide a guarantee by a financially stronger parent company, requiring the Town's prior approval of all subcontractors used, requiring the Town's prior approval or designation of a particular project manager or superintendent, and require a guarantee from the vendor that management will be present at the job site during specified times and cooperate fully with the Town.

CONDUCTING THE INVESTIGATION

The General Services Director shall obtain all information reasonably relevant to conducting an inquiry as to whether a vendor is responsible. Of course, comprehensive information relevant to a vendor's responsibility should be solicited in the invitation for bids or request for proposals. Nevertheless, additional information may be required from a vendor in a particular case.

The investigation may include the following:

- Vendor qualifications: The General Services Director may require a vendor to submit such evidence of its qualifications as deemed necessary.
- Consider all information available: The General Services Director should consider any and all evidence available concerning the financial, technical, and other qualifications abilities and past performance of a vendor. The General Services Director should obtain all information reasonably relevant to the inquiry, and not only information that is adverse to the vendor.
- Require assurances from the vendor: The General Services Director should ask the vendor to give the Town additional assurances as to its responsibility. These assurances may include, but are not limited to, a guarantee by a financially stronger parent company, approval of all subcontractors used, the designation of a particular project manager or superintendent, and a guarantee that management will be present at the job site during specified times and cooperate fully with the Town.
- Qualification questionnaire: The General Services Director may require the vendor to complete a qualification questionnaire, which should request information such as the names of officers and partners, experience and equipment, current contracts and future work, association memberships, trade union relationships, list of subcontractors utilized, resumes of key personnel, and the latest financial statement. If the review of the questionnaire of the vendor discloses that it may not be responsible, the vendor should be invited to meet with the General Services Director to resolve or to explain the deficiencies. If a satisfactory explanation is not secured, the General Services Director may, with approval from the Town Attorney, determine the vendor to be non-responsible.

After receipt of the additional information from the vendor and other sources, the General Services Director shall consult with the using department and the Town Attorney. The decision will be made by the Town Attorney as to a determination of the vendor being non-responsible.

Procedure if Vendor is Determined to be Not Responsible

If the Town Attorney makes a preliminary determination that a vendor is not responsible, the following procedure shall apply:

- Preliminary notice: Prior to issuing a written determination of non-responsibility, the General Services Director shall:
 1. notify the vendor in writing of the results of the investigation and evaluation
 2. disclose the factual support for the determination of non-responsibility
 3. allow the vendor an opportunity to inspect any documents which relate to the determination, if so requested by the vendor within five (5) business days after receipt of the notice
- Challenge to evaluation: Within ten (10) business days after receipt of the notice, the vendor may submit rebuttal information challenging the evaluation to the Town Attorney.
- Written determination of non-responsibility: The Town Attorney shall issue a written documentation of non-responsibility based on all of the information in the possession of the Town, including any rebuttal information. The written determination shall state the basis for the determination. The written determination shall be sent by certified mail, return receipt requested, to the vendor. The written determination shall not otherwise be distributed to any other vendors.
- Timing of determination of responsibility: The Town Attorney shall issue the written determination of non-responsibility within five (5) business days following receipt of the rebuttal information. If the Town Attorney does not receive rebuttal information, the Town Attorney shall issue the written determination of non-responsibility at any time after the ten (10) day period following the date the vendor was notified by the General Services Director of the results of the investigation and evaluation, but prior to the General Services Director issuing a notice of intent to award.
- Hearing if requested: Should the vendor so request in a writing delivered to the office of the Town Attorney no later than seven (7) days following the date of the Town Attorney's written determination, vendor shall be given an opportunity to present its position regarding responsibility to the Colonie Town Board. The Town Board shall hear the appeal on the date of its next scheduled meeting and issue its' decision regarding non-responsibility.
- Finality of determination: The Board's determination shall be final, or if such hearing has not been requested, the Town Attorney's written determination shall be final after the aforesaid seven (7) day period.

Department Requirements for Determining Vendor Responsibility

1. The Department shall maintain a log of issues with a vendor that have occurred that are unacceptable to the Town and that do not meet the bid specifications or contact terms and conditions. This should include:
 - a. A description of the occurrence including all details and documents available that pertain to the incident.
 - b. Reference these to the bid specification requirement that was not met.
 - c. A record of all contact made to resolve the issue including who was contacted and proposed resolutions.
 - d. A description of the outcome of each issue. This should include related costs, safety issues, inconvenience to residents of the Town and any work left incomplete as a result.
2. The Department shall record a pattern of issues that have been addressed with the bidder where the outcome was unacceptable to the Town.
3. The Town Attorney and the Department should work with Purchasing to revise the specification for future bids to strengthen our position in avoiding similar issues.

APPENDIX

Purchase order Terms and Conditions

Public Works General Contracting Agreement

Vendor Responsibility Questionnaire

CONDITIONS GOVERNING ALL TOWN OF COLONIE PURCHASE ORDERS

- 1) The Town of Colonie is not responsible for materials, supplies or equipment delivered without authority of its purchase order.
- 2) All materials shipped by freight, express or parcel post must have all charges fully prepaid to point of delivery unless otherwise arranged for and expressly stated on the purchase order.
- 3) Include itemized packing slips with all shipments or deliveries. Show name of department for whom delivery is intended and purchase order number on the packing slip.
- 4) Invoices must be rendered on the date of complete shipment of all materials on Town orders. Separate invoices for partial shipments are not allowed unless otherwise arranged for and expressly stated on the purchase order.
- 5) Individual invoices are required for each order. Invoice must be itemized in detail.
- 6) Cash discount terms must be indicated on purchase order. Discount offered will be computed from the time of final inspection and acceptance at delivery or from date of vendor/contractor certified corrected billing on Town purchase order, whichever is later.
- 7) All materials, supplies and equipment received are subject to inspection and acceptance by the Town of Colonie.
- 8) If unable to fill a Town order exactly in accordance with description, unit and price thereon, communicate at once with the General Services Department, Purchasing Division at (518) 783-2726. The Town reserves the right to reject and return at shipper's expense any or all materials or supplies delivered which do not conform to our description or specifications.
- 9) If there is any part of a Town order you cannot fill promptly or within the time specified, notify the General Services Department, Purchasing

Division (518) 783-2726 at once. We reserve the option to cancel the order or any part thereof if not filled promptly.

10) Where items are tax paid by the manufacturer, the tax should be deducted as a separate item and an exemption certificate will be executed by the Town on any such items to enable the vendor to recover the tax from the manufacturer.

11) Invoices must contain the Town of Colonie Purchase Order Number.

For question concerning these terms, please contact the Town of Colonie, General Services Department, Purchasing Division at (518) 783-2726 or at purchasing@colonie.org

Effective 6/2/2022

TOWN OF COLONIE VENDOR RESPONSIBILITY QUESTIONNAIRE

This Qualification Questionnaire should be submitted to the Town of Colonie General Services Department along with any initial bid by each bidding entity. It will be kept on file by the General Services Department and should be supplemented thereafter whenever changes/additions so necessitate.

1. VENDOR IS: ☐ PRIME CONTRACTOR			
2. VENDOR'S LEGAL BUSINESS NAME		3. IDENTIFICATION NUMBERS a) FEIN # b) DUNS #	
4. D/B/A – Doing Business As (if applicable) & COUNTY FIELD:		5. WEBSITE ADDRESS (if applicable)	
6. ADDRESS OF PRIMARY PLACE OF BUSINESS/EXECUTIVE OFFICE		7. TELEPHONE NUMBER	8. FAX NUMBER
9. ADDRESS OF PRIMARY PLACE OF BUSINESS/EXECUTIVE OFFICE <i>IN NEW YORK STATE, if different from above</i>		10. TELEPHONE NUMBER	11. FAX NUMBER
12. AUTHORIZED CONTACT FOR THIS QUESTIONNAIRE Name Title Telephone Number Fax Number e-mail			
13. LIST ALL OF THE VENDOR'S PRINCIPAL OWNERS.			
a) NAME	TITLE	b) NAME	TITLE
c) NAME	TITLE	d) NAME	TITLE
A DETAILED EXPLANATION IS REQUIRED FOR EACH QUESTION ANSWERED WITH A "YES," AND MUST BE PROVIDED AS AN ATTACHMENT TO THE COMPLETED QUESTIONNAIRE. YOU MUST PROVIDE ADEQUATE DETAILS OR DOCUMENTS TO AID THE TOWN IN MAKING A DETERMINATION OF VENDOR RESPONSIBILITY. PLEASE NUMBER EACH RESPONSE TO MATCH THE QUESTION NUMBER.			
14. DOES THE VENDOR USE, OR HAS IT USED IN THE PAST FIVE (5) YEARS, ANY OTHER BUSINESS NAME, FEIN, or D/B/A OTHER THAN THOSE LISTED IN ITEMS 2-4 ABOVE? List all other business name(s), Federal Employer Identification Number(s) or any D/B/A names and the dates that these names or numbers were/are in use. Explain the relationship to the vendor. ☐ Yes ☐ No 			
15. ARE THERE ANY INDIVIDUALS NOW SERVING IN A MANAGERIAL OR CONSULTING CAPACITY TO THE VENDOR, INCLUDING PRINCIPAL OWNERS AND OFFICERS, WHO NOW SERVE OR IN THE PAST ONE (1) YEARS HAVE SERVED AS: a) An elected or appointed public official or officer? <i>List each individual's name, business title, the name of the organization and position elected or appointed to, and dates of service</i> ☐ Yes ☐ No b) An officer of any political party organization in the Town of Colonie, whether paid or unpaid? ☐ Yes ☐ No			

List each individuals name, business title or consulting capacity and the official political position held with applicable service dates.

16. WITHIN THE PAST (5) YEARS, HAS THE VENDOR, ANY INDIVIDUALS SERVING IN MANAGERIAL OR CONSULTING CAPACITY, PRINCIPAL OWNERS, OFFICERS, MAJOR STOCKHOLDER(S) (10% OR MORE OF THE VOTING SHARES FOR PUBLICLY TRADED COMPANIES, 25% OR MORE OF THE SHARES FOR ALL OTHER COMPANIES), AFFILIATE¹ OR ANY PERSON INVOLVED IN THE BIDDING OR CONTRACTING PROCESS: a) 1. been suspended, debarred or terminated by a local, state or federal authority in connection with a contract or contracting process; 2. been disqualified for cause as a bidder on any permit, license, concession franchise or lease; 3. entered into an agreement to a voluntary exclusion from bidding/contracting; 4. had a bid rejected on a Town of Colonie contract for failure to comply with the MacBride Fair Employment Principles; 5. been subject to an administrative proceeding or civil action seeking specific performance or restitution in connection with any local, state or federal government contract; 6. been denied an award of a local, state or federal government contract, had a contract suspended or had a contract terminated for non-responsibility; or 7. had a local, state or federal government contract suspended or terminated for cause prior to the completion of the term of the contract. b) been indicted, convicted, received a judgment against them or a grant of immunity for any business-related conduct constituting a crime under local, state or federal law including but not limited to, fraud extortion, bribery, racketeering, price-fixing, bid collusion or any crime related to truthfulness and/or business conduct? c) been issued a citation, notice, violation order, or are pending an administrative hearing or proceeding or determination of violations of: 1. federal, state or local health laws, rules or regulations.	☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No
17. IN THE PAST THREE (3) YEARS, HAS THE VENDOR OR ITS AFFILIATES HAD ANY CLAIMS, JUDGMENTS, INJUNCTIONS, LIENS, FINES OR PENALTIES SECURED BY ANY GOVERNMENTAL AGENCY? Indicate if this is applicable to the submitting vendor or affiliate. State whether the situation(s) was a claim, judgment, injunction, lien or other with an explanation. Provide the name(s) and address(es) of the agency, the amount of the original obligation and outstanding balance. If any of these items are open, unsatisfied, indicate the status of each item as "open" or "unsatisfied."	☐ Yes ☐ No
18. DURING THE PAST THREE (3) YEARS, HAS THE VENDOR FAILED TO: a) file returns or pay any applicable federal, state or city taxes? <i>Identify the taxing jurisdiction, type of tax, liability year(s), and tax liability amount the vendor failed to file/pay and the current status of the liability.</i> b) file returns or pay New York State unemployment insurance? <i>Indicate the years the vendor failed to file/pay the insurance and the current status of the liability.</i>	☐ Yes ☐ No ☐ Yes ☐ No

¹ "Affiliate" meaning: (a) any entity in which the vendor owns more than 50% of the voting stock; (b) any individual, entity or group of principal owners or officers who own more than 50% of the voting stock of the vendor; or (c) any entity whose voting stock is more than 50% owned by the same individual, entity or group described in clause (b). In addition, if a vendor owns less than 50% of the voting stock of another entity, but directs or has the right to direct such entity's daily operations, that entity will be an "affiliate" for purposes of this questionnaire.

19.	HAVE ANY BANKRUPTCY PROCEEDINGS BEEN INITIATED BY OR AGAINST THE VENDOR OR ITS AFFILIATES WITHIN THE PAST SEVEN (7) YEARS (WHETHER OR NOT CLOSED) OR IS ANY BANKRUPTCY PROCEEDING PENDING BY OR AGAINST THE VENDOR OR ITS AFFILIATES REGARDLESS OF THE DATE OF FILING? Indicate if this is applicable to the submitting vendor or affiliate. If it is an affiliate, include the affiliate's name and FEIN. Provide the court name, address and docket number. Indicate if the proceedings have been initiated, remain pending or have been closed. If closed, provide the date closed.	☐ Yes ☐ No
20.	IS THE VENDOR CURRENTLY INSOLVENT, OR DOES VENDOR CURRENTLY HAVE REASON TO BELIEVE THAT AN INVOLUNTARY BANKRUPTCY PROCEEDING MAY BE BROUGHT AGAINST IT? Provide financial information to support the vendor's current position, for example, Current Ratio, Debt Ratio, Age of Accounts Payable, Cash Flow and any documents that will provide the agency with an understanding of the vendor's situation.	☐ Yes ☐ No
21.	IN THE PAST FIVE (5) YEARS, HAS THE VENDOR OR ANY AFFILIATES: a) defaulted or been terminated on, or had its surety called upon to complete, any contract (public or private) awarded; Indicate if this is applicable to the submitting vendor or affiliate. Detail the situation(s) that gave rise to the negative action, any corrective action taken by the vendor and the name of the contracting agency.	☐ Yes ☐ No
22.	HAS THE VENDOR OR ANY AFFILIATES RECEIVED TWO FINAL DETERMINATIONS WITHIN ANY CONSECUTIVE SIX-YEAR PERIOD, THE SECOND FINAL DETERMINATION OCCURRING WITHIN THE PAST FIVE-YEARS, THAT YOUR FIRM WILLFULLY FAILED TO PAY THE PREVAILING RATE OF WAGES OR TO PROVIDE SUPPLEMENTS IN ACCORDANCE WITH ARTICLE 8 OF THE LABOR LAW. If yes, indicate if this is applicable to the submitting vendor or affiliate. If it is an affiliate, include the affiliate's name and FEIN. For either, provide details.	☐ Yes ☐ No

BIDDERS QUALIFICATION

The undersigned guarantees the accuracy of all statements and answers herein contained. (Please print in ink or type in the spaces provided). Attach additional sheets if necessary. This statement of Bidder's qualifications is required of all Bidders. Additional data on Bidder's qualifications may be requested from selected Bidders after the Bid opening.

1. How many years has your firm been in business as a Contractor?
2. List up to three projects of this nature that you have completed in the last three years, and give the name, address and telephone number of a reference from each. Also give the completion date, the original contract bid price and the completed cost of each project listed.
3. List projects presently under construction by your firm, the dollar volume of the contract and the percentage completion of the contract.

- 4.. Do you plan to sublet any part of this work? If so, give details.
5. What equipment do you own that is available for this work?
6. What equipment do you plan to rent or purchase for this work?
7. Have you ever performed work under the direction of a Professional Engineer or Registered Architect? If so, list up to three such firms giving the name of the firm, its address, telephone number and the name of the project. (List most recent projects).
8. Give the name, address and telephone number of an individual who represents each of the following and whom the Owner may contact to investigate your financial responsibility: a surety, a bank, and a major material supplier.
9. Give a summary of your financial statement. (List assets and liabilities; use an insert sheet if needed)

TOWN OF COLONIE
VENDOR RESPONSIBILITY QUESTIONNAIRE

FEIN #

State of:)
) ss:
County of:)

CERTIFICATION:

The undersigned: recognizes that this questionnaire is submitted for the express purpose of assisting the Town of Colonie in making a determination regarding an award of contract or approval of a subcontract; acknowledges that the Town may in its discretion, by means which it may choose, verify the truth and accuracy of all statements made herein; acknowledges that intentional submission of false or misleading information may constitute a felony under Penal Law Section 210.40 or a misdemeanor under Penal Law Section 210.35 or Section 210.45, and may also be punishable by a fine and/or imprisonment of up to five years under 18 USC Section 1001 and may result in contract termination; and states that the information submitted in this questionnaire and any attached pages is true, accurate and complete.

The undersigned certifies that he/she:

- Has not altered the content of the questions in the questionnaire in any manner;
- Has read and understands all of the items contained in the questionnaire and any pages attached by the submitting vendor;
- Has supplied full and complete responses to each item therein to the best of his/her knowledge, information and belief;
- Is knowledgeable about the submitting vendor's business and operations;
- Understands that the Town of Colonie will rely on the information supplied in the questionnaire when entering into a contract with the vendor;
- Is under duty to notify the Town of Colonie Purchasing Division of any material changes to the vendor's responses.

Name of Business

Signature of Owner

Address

Printed Name of Signatory

City, State, Zip

Title

Sworn before me this ____ day of _____, 20__;

Notary Public

Printed Name

Signature

Date